

1 ENGROSSED HOUSE
2 BILL NO. 3265

By: George, Deck, and Hefner of
the House

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4 Frix of the Senate
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8 An Act relating to retirement; amending 11 O.S. 2021,
9 Section 50-115, as last amended by Section 7, Chapter
10 151, O.S.L. 2023 (11 O.S. Supp. 2025, Section 50-
11 115), which relates to the Oklahoma Police Pension
12 and Retirement System; defining term; permitting
13 psychologist to make certain certification; providing
14 requirement for continuing salary; and providing an
15 effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 11 O.S. 2021, Section 50-115, as
18 last amended by Section 7, Chapter 151, O.S.L. 2023 (11 O.S. Supp.
19 2025, Section 50-115), is amended to read as follows:

20 Section 50-115. A. The State Board is authorized to pay a
21 disability benefit to a member of the System or a pension to the
22 beneficiaries of such member eligible as hereinafter provided, not
23 exceeding the accrued retirement benefit of the member, except as
24 otherwise provided in this article. Such disability benefit shall
be payable immediately upon determination of eligibility. Any

1 preexisting condition identified at the time of any initial or
2 subsequent membership shall be used to offset the percentage of
3 impairment to the whole person in determining any disability
4 benefit. Once the initial disability benefit has been awarded by
5 the Board on the basis of the percentage of impairment to the whole
6 person, the member shall have no further recourse to increase the
7 awarded percentage of impairment.

8 B. In order for any member to be eligible for any disability
9 benefit, or the member's beneficiaries to be eligible for a pension,
10 the member must have complied with any agreement as to contributions
11 by the member and other members to any funds of the System where the
12 agreement has been made as provided by this article; and the State
13 Board must find:

14 1. That the member incurred a permanent total disability or a
15 permanent partial disability or died while in, and in consequence
16 of, the performance of duty as an officer; or

17 2. That such member has served ten (10) years and incurred a
18 permanent total disability or a permanent partial disability or has
19 died from any cause.

20 C. In the event of the death of any member who has been awarded
21 a disability benefit or is eligible therefor as provided in this
22 article, the member's beneficiary shall be paid the benefit.

23 D. 1. As of the date of determination by the State Board that
24 a member has a permanent in-line disability, the member shall be

1 awarded a normal disability benefit, as defined in Section 50-101 of
2 this title.

3 2. If an injury to a member results from a violent act as
4 defined by this paragraph while in the performance of his or her
5 duties as a police officer, the State Board shall make a
6 determination that the member has sustained a one-hundred-percent
7 disability and shall make the benefit award in accordance with that
8 standard. As used in this paragraph, "violent act" means a violent
9 attack upon the member by means of a dangerous weapon including, but
10 not limited to, a firearm, knife, automobile, explosive device or
11 other dangerous weapon.

12 E. If the participating municipality denies a disabled member
13 the option of continuing employment instead of retiring on a
14 disability pension, then the burden of proof rests with the
15 participating municipality to show cause to the State Board that
16 there is no position as a sworn officer within the police department
17 of that municipality which the member can fill.

18 F. Upon determination by the State Board that a member is
19 physically or mentally disabled and that the disability is permanent
20 and total and that the member has completed ten (10) years of
21 credited service and is disabled by any cause, the member shall
22 receive a disability benefit on the basis of the member's accrued
23 retirement benefit. A permanent and total impairment equates to one
24 hundred percent (100%) of accrued retirement benefit.

1 G. For purposes of this section, a "mental health specialist"
 2 means a psychiatrist licensed by the State Board of Medical
 3 Licensure and Supervision, a psychologist licensed by the Oklahoma
 4 State Board of Examiners of Psychologists, or a Licensed
 5 Professional Counselor, Licensed Marital and Family Therapist, or
 6 Licensed Behavioral Practitioner licensed by the State Board of
 7 Behavioral Health Licensure.

8 H. Upon determination by the State Board that a member is
 9 physically or mentally disabled and that the disability is permanent
 10 and partial and that the member has completed ten (10) years of
 11 credited service as a member and is disabled from any cause, the
 12 member shall be awarded a disability benefit on the basis of the
 13 member's years of credited service as a member and the percentage of
 14 impairment to the whole person, as defined by the standards of the
 15 impairment as outlined in the "American Medical Association's Guides
 16 to the Evaluation of Permanent Impairment", on the basis of the
 17 following table:

18 1% to 49% impaired = 50% of accrued retirement benefit

19 50% to 74% impaired = 75% of accrued retirement benefit

20 75% to 99% impaired = 100% of accrued retirement benefit.

21 ~~H.~~ I. Before making a finding as to the disability of a member,
 22 the State Board shall require that, if the member is able, the
 23 member shall make a certificate as to the disability which shall be
 24 subscribed and sworn to by the member. It shall also require a

1 certificate as to such disability to be made by some physician
2 licensed to practice in this state, or a psychologist for mental
3 disability applications, as selected by the State Board. The State
4 Board may require other evidence of disability before making the
5 disability benefit. The salary of any such member shall continue
6 while the member is so necessarily undergoing treatment, confined to
7 such hospital bed or home, and necessarily requires medical care or
8 professional nursing on account of such sickness or disability for a
9 period of not more than six (6) months, after which the period the
10 other provisions of this article may apply. The State Board, in
11 making disability benefits, shall act upon the written request of
12 the member or without such request, if it deem it for the good of
13 the police department. Any disability benefits shall cease when the
14 member receiving same shall be restored to active service at a
15 salary not less than three-fourths (3/4) of the member's average
16 monthly salary.

17 ~~I.~~ J. Any member of a police department of any municipality
18 who, in the line of duty, has been exposed to hazardous substances
19 including but not limited to chemicals used in the manufacture of a
20 controlled dangerous substance or chemicals resulting from the
21 manufacture of a controlled dangerous substance, or to blood-borne
22 pathogens and who is later disabled from a condition that was the
23 result of such exposure and that was not revealed by the physical
24 examination passed by the member upon entry into the System shall be

1 presumed to have incurred such disability while performing the
2 officer's duties unless the contrary is shown by competent evidence.
3 The presumption created by this subsection shall have no application
4 whatever to any workers' compensation claim or claims, and it shall
5 not be applied or be relied upon in any way in workers' compensation
6 proceedings. All compensation or benefits due to any member
7 pursuant to the presumption created by this subsection shall be paid
8 solely by the ~~system~~ System.

9 ~~J.~~ K. If the requirements of Section 50-114.4 of this title are
10 satisfied, a member who, by reason of disability, is separated from
11 service as a public safety officer with the member's participating
12 municipality, may elect to have payment made directly to the
13 provider for qualified health insurance premiums by deduction from
14 his or her monthly disability benefit, after December 31, 2006, in
15 accordance with Section 402(1) of the Internal Revenue Code of 1986,
16 as amended. For distributions made after December 29, 2022, the
17 election provided for under Section 402(1) of the Internal Revenue
18 Code of 1986, as amended, may be made whether payment of the
19 premiums is made directly to the provider of the accident or health
20 plan or qualified long-term care insurance contract by deduction
21 from a distribution from the System or is made to the member.

22 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 24th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

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9 Presiding Officer of the Senate